

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Jeffrey Mulinelli (S)	Team: Squad #08	CCRB Case #: 201501879	☒ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☒ O.L.	☒ Injury
Incident Date(s) Thursday, 03/05/2015 12:00 AM, Friday, 03/06/2015 12:00 AM	Location of Incident: 66th Precinct Stationhouse and 60th Street and 16th Avenue	18 Mo. SOL 9/6/2016	Precinct: 66		
Date/Time CV Reported Sat, 03/14/2015 4:36 PM	CV Reported At: IAB	How CV Reported: Phone	Date/Time Received at CCRB Mon, 03/16/2015 4:36 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. An officer			
2. SGT Jianping Zeng	05639	942743	066 PCT
3. POM Denis Kolenovic	06019	951879	066 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Dian Jiang	04494	948052	066 PCT
2. POF Benita Bunch	03222	938130	066 PCT
3. SGT Steven Catalano	02986	929857	066 PCT
4. POM Sandy Santarsiero	22795	931153	066 PCT
5. POM Howard Yu	26907	941171	066 PCT

Officer(s)	Allegation	Investigator Recommendation
A . SGT Jianping Zeng	Force: Sgt. Jianping Zeng used physical force against § 87(2)(b)	A . Unfounded
B . POM Denis Kolenovic	Force: PO Denis Kolenovic used physical force against § 87(2)(b)	B . Unfounded
C . An officer	Discourtesy: An officer spat on § 87(2)(b)	C . Officer(s) Unidentified
D . POM Denis Kolenovic	Off. Language: PO Denis Kolenovic made remarks to § 87(2)(b) based upon the perceived sexual orientation of § 87(2)(b)	D . Unsubstantiated
E . POM Denis Kolenovic	Discourtesy: PO Denis Kolenovic acted rudely toward § 87(2)(b)	E . Unsubstantiated

Case Summary

On March 6, 2015, at approximately 12:00 a.m., § 87(2)(b) entered the 66th Precinct stationhouse to file a complaint about an assault. Sgt. Jianping Zeng, who was the desk sergeant, told § 87(2)(b) that a report had been made and he could not provide a copy. When § 87(2)(b) protested, Sgt. Zeng walked around the desk and allegedly pushed § 87(2)(b) (**allegation A**). Sgt. Zeng and PO Denis Kolenovic then allegedly dragged § 87(2)(b) out of the stationhouse and to the top of a set of stairs just outside the door (**allegations A and B**). According to § 87(2)(b) Sgt. Zeng and PO Kolenovic brought him to the edge of the first step and released him when he was off balance (**also allegations A and B**). § 87(2)(b) fell backwards down the steps and hurt his back when he landed.

As § 87(2)(b) lay on the ground, an officer walked by and spat on him (**allegation C**). § 87(2)(b) called an ambulance, and several officers, including PO Kolenovic, exited the stationhouse about ten minutes later. PO Kolenovic placed § 87(2)(b) against an RMP and handcuffed him with the assistance of other officers. PO Kolenovic then pulled § 87(2)(b)'s hood in front of his face so that he could not see, and he pulled § 87(2)(b) from the RMP and dropped him to the ground from a height of about one foot (**also allegation B**). PO Kolenovic stood over § 87(2)(b) and told other officers that § 87(2)(b) was gay, homosexual, and “sucked dicks” (**allegation D**). PO Kolenovic also stepped on § 87(2)(b)'s buttocks (**allegation E**). § 87(2)(b) was removed to § 87(2)(b) by ambulance.

Mediation, Civil, and Criminal Histories

This case was ineligible for mediation due to an injury suffered by § 87(2)(b).

An NOC inquiry was submitted to the Office of the New York City Comptroller on July 30, 2015. Its results will be added to the case file upon receipt [see 15 Board Review].

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Civilian and Officer CCRB Histories

This is the first CCRB complaint filed by § 87(2)(b) [see 01 Board Review].

This is the first CCRB complaint filed against Sgt. Zeng in his nine year tenure.

This is the first CCRB complaint filed against PO Kolenovic during his three year tenure.

Findings and Recommendations

Identification of Subject Officers

§ 87(2)(b) stated that he spoke with two Asian male officers at the desk inside of the stationhouse before he was escorted out. Sgt. Zeng, who is an Asian male and was the desk sergeant on the night of the incident, acknowledged that he spoke with § 87(2)(b) inside the stationhouse and escorted him out with PO Kolenovic. § 87(2)(b) also described Sgt. Zeng as an Asian male in his 30s who had spiked black hair and weighed 140 to 150 pounds [see 04-05 Board Review]. Sgt. Zeng's MOS photo revealed that he is a § 87(2)(b) Asian male with black

hair, § 87(2)(b) [see 09 Board Review]. § 87(2)(g)

§ 87(2)(b) described the officers to whom he attributed the force, discourtesy, and offensive language allegations as a white male in his 30s, who stood 5'9" tall, had brown eyes and brown or blond hair, and had a long, weird last name [see 04-05 Board Review]. PO Kolenovic's MOS photo revealed that he is a § 87(2)(b). He has brown hair and blue eyes [see 12 Board Review]. Although PO Kolenovic denied escorting § 87(2)(b) out of the stationhouse and to the stairs, he acknowledged interacting with § 87(2)(b) outside, placing him on an RMP and then the ground, and escorting him to the hospital. § 87(2)(b) and PO Kolenovic were in agreement that PO Kolenovic escorted § 87(2)(b) to § 87(2)(b) [see 04-05, 11 Board Review]. § 87(2)(g)

§ 87(2)(b) stated that an officer spat on him as he lay on the ground. § 87(2)(b) did not see the officer as he or she passed by, and he was unable to provide any description of the officer [see 04-05 Board Review]. § 87(2)(g)

Allegation A) Force: Sgt. Jianping Zeng used physical force against § 87(2)(b)

Allegation B) Force: PO Denis Kolenovic used physical force against § 87(2)(b)

§ 87(2)(b) was unsure of the date of this incident, and he believed that it happened between March 4, 2015, and March 6, 2015, sometime late at night. § 87(2)(b) testified that he entered the 66th Precinct stationhouse to obtain a copy of a police report of a previous incident in which he was assaulted. When Sgt. Zeng, who was the desk sergeant, refused to make another report or give § 87(2)(b) a copy, § 87(2)(b) became aggravated and asked several times why he could not have a copy. § 87(2)(b) denied doing anything with his body as he protested.

According to § 87(2)(b) Sgt. Zeng walked around the desk and pushed him by placing one hand on his chest. Sgt. Zeng and PO Kolenovic then allegedly grabbed and dragged § 87(2)(b) from the stationhouse and released their grips on him while he was off balance at the top of the steps just outside the door [see photo in 02 Board Review]. § 87(2)(b) fell backwards and remained on the ground as the officers went back inside the stationhouse.

§ 87(2)(b) called 911 for an ambulance, but several officers, including PO Kolenovic, exited the stationhouse before the ambulance arrived. PO Kolenovic placed § 87(2)(b) against an RMP and handcuffed him with the assistance of other officers. PO Kolenovic then pulled § 87(2)(b)'s hood over his face so that he could not see, pulled him off the RMP, and allegedly dropped him about one foot to the ground. § 87(2)(b)

Sgt. Zeng testified that § 87(2)(b) spoke loudly inside the stationhouse. Sgt. Zeng informed § 87(2)(b) that a report had already been made and he could not make another. § 87(2)(b) stood in place and did not leave. After § 87(2)(b) refused several of Sgt. Zeng's requests to leave the stationhouse, Sgt. Zeng and PO Kolenovic escorted him out by holding his arms. Sgt. Zeng denied pushing § 87(2)(b) and he did not see any officer do so. § 87(2)(b) moved under his own power, though he did attempt to stop briefly at the door. According to Sgt. Zeng, he and PO Kolenovic walked § 87(2)(b) down the set of steps at the front of the stationhouse.

As they reached the bottom step, § 87(2)(b) attempted to drop himself to the ground by pulling backward and away from the officers. The officers held his arms and lowered § 87(2)(b) to the ground. Sgt. Zeng determined that § 87(2)(b) was okay, and the officers walked back into the stationhouse.

Five to ten minutes later, § 87(2)(b) came back into the stationhouse. He yelled at the officers and was warned to leave several times. § 87(2)(b) refused to leave, and he was escorted out by Sgt. Zeng and other officers using the same technique as the previous encounter. § 87(2)(b) attempted to fall from the bottom step in the same way as he had the first time, but he acted aggressively by yelling at PO Kolenovic and other officers. Sgt. Zeng did not see § 87(2)(b) fall from the top step either time. Sgt. Zeng went back inside of the stationhouse, but he later learned from a source whose name he did not remember that § 87(2)(b) kicked and spat at the officers while he was on the ground. Sgt. Zeng determined that § 87(2)(b) was an EDP and called an ambulance for him. Sgt. Zeng did not spit on § 87(2)(b) nor did he see any officer do so. Sgt. Zeng did not call § 87(2)(b) homosexual, gay, or say that he “sucked dicks.” Sgt. Zeng did not hear any officer make the aforementioned comments. Sgt. Zeng did not see any officer step on § 87(2)(b) s buttocks [see 08 Board Review].

§ 87(2)(g)
§ 87(2)(b). PO Kolenovic added that he approached § 87(2)(b) after he refused several of Sgt. Zeng’s orders to leave the stationhouse, and § 87(2)(b) was antagonistic, asking PO Kolenovic to hit him because there were cameras. PO Kolenovic asked § 87(2)(b) to leave twice before making physical contact with him. PO Kolenovic grabbed § 87(2)(b) s right arm to show him to the door, but § 87(2)(b) pulled away. At that point, Sgt. Zeng and other officers, whose identifies PO Kolenovic did not remember, grabbed § 87(2)(b) by his arms and led him to the door. PO Kolenovic remained inside the door but observed that § 87(2)(b) went limp as he reached the last step. The officers supported his weight, but § 87(2)(b) still went to the ground. PO Kolenovic went back inside and did not see who remained outside with § 87(2)(b)

According to PO Kolenovic, § 87(2)(b) returned to the stationhouse at approximately 2:00 a.m. the same night. PO Kolenovic was in the muster room when he heard someone yelling, which immediately prompted him to walk out into the front area of the stationhouse. He observed Sgt. Zeng tell § 87(2)(b) to leave the stationhouse, but he refused and was escorted out by Sgt. Zeng and another officer whose name PO Kolenovic did not know. PO Kolenovic warned the officers that § 87(2)(b) was going to throw himself down the stairs and blame the officers. PO Kolenovic remained by the doors as the officers took § 87(2)(b) out in the same fashion as they had the first time, and § 87(2)(b) again lowered himself to the ground. At that point, Sgt. Zeng told PO Kolenovic that an ambulance had to be called for § 87(2)(b) because a sane person would not have thrown himself down the stairs.

PO Kolenovic walked down the stairs and § 87(2)(b) stood up in a combative stance as he approached. PO Kolenovic and another officer handcuffed § 87(2)(b) for safety reasons. § 87(2)(b) resisted, and though a lot of strength was required to handcuff him, the officers were able to do so by pulling § 87(2)(b) s arms behind his back. The battle of getting § 87(2)(b) in handcuffs, couple with the cold temperatures that night, caused PO Kolenovic to lose strength in his hands, so he placed § 87(2)(b) against a parked RMP and leaned his bodyweight against him to prevent him from running away. § 87(2)(b) was spitting, so PO Kolenovic held § 87(2)(b) s hood in front of his face as a spit guard. § 87(2)(b) was also

kicking and pushing himself off of the RMP. An unknown officer placed shackles on § 87(2)(b)'s legs.

PO Kolenovic placed § 87(2)(b) on the ground. He denied lifting § 87(2)(b) from the RMP or dropping him to the ground. § 87(2)(b) started to flop around, and he kicked and spat at the officers. § 87(2)(b) said, "Suck my dick, you faggot" several times. He struck PO Kolenovic on his leg with a kick.

When EMS arrived, PO Kolenovic escorted § 87(2)(b) to the hospital. Inside the ambulance, § 87(2)(b) looked directly at PO Kolenovic and told him that he looked like a faggot. § 87(2)(b) also insulted PO Kolenovic's eyebrows. At the hospital, § 87(2)(b) was restrained by medical staff but told PO Kolenovic, "When I see the doctor, I'm going to act completely normal."

PO Kolenovic denied pushing § 87(2)(b) at any point. He did not see any officer push § 87(2)(b). Neither PO Kolenovic nor any other officer dragged § 87(2)(b) to the top of the stairs and released him so that he would fall. PO Kolenovic did not step on § 87(2)(b)'s buttocks during the incident, and he did not see any officer do so [see 11 Board Review].

The AIDED report prepared by PO Kolenovic was consistent with his CCRB statement [see 10 Board Review].

PO Yu also denied remembering what § 87(2)(b)'s behavior was like as he was inside of the stationhouse. PO Yu acknowledged that Sgt. Zeng refused to give a report to § 87(2)(b) but PO Yu was on the phone during the incident and did not remember if § 87(2)(b) argued. Sgt. Zeng asked § 87(2)(b) to leave, but PO Yu did not know if § 87(2)(b) was complainant. PO Yu did not witness or learn of any interaction between the officers at the stationhouse and § 87(2)(b). PO Yu never made physical contact with § 87(2)(b) because he was not allowed to do so due to medical restrictions. PO Yu did not exit the stationhouse to interact with § 87(2)(b) at any point [see 13 Board Review].

PO Benita Bunch acknowledged interacting with § 87(2)(b). However, her interaction with him stemmed from a different incident on March 5, 2015, at 1:51 a.m. During that incident, § 87(2)(b) flagged down PO Bunch in the vicinity of 53rd Street and 8th Avenue in Brooklyn. He complained that he had been robbed and assaulted. PO Bunch spoke with officers at the 66th Precinct stationhouse via radio or phone and learned that a report had already been made about the incident. § 87(2)(b) complained of pain and showed PO Bunch an injury to his mouth. PO Bunch believed that § 87(2)(b) was intoxicated because he smelled of alcohol and was unable to tell a coherent story. PO Bunch called an ambulance and § 87(2)(b) was transported to § 87(2)(b). He did not make any complaints against police officers at that time. PO Bunch did not have any interaction with § 87(2)(b) after placing him into the ambulance [see 06 Board Review].

Sgt. Steven Catalano testified that he and his partner, PO Sandy Santarsiero, responded to an AIDED job at 60th Street and 16th Avenue, which was one block from the 66th Precinct stationhouse. The details of the job included an accusation that police officers had thrown a man down the stairs. Upon arrival, Sgt. Catalano found § 87(2)(b) lying on the ground and complaining of back pain. He did not observe any injuries to § 87(2)(b). Sgt. Catalano asked § 87(2)(b) about the accusation that officers had thrown him down the stairs, but § 87(2)(b)

§ 87(2)(b) was uncooperative and refused to answer. Sgt. Catalano believed that § 87(2)(b) was intoxicated because he was belligerent and only provided profane responses, such as “fuck you,” to Sgt. Catalano’s questions. According to Sgt. Catalano, § 87(2)(b) recanted and stated that no one threw him down the stairs and he wanted the officers to forget the whole thing because he did not want to talk. An ambulance arrived less than five minutes later, but § 87(2)(b) refused to get off the ground and get in the ambulance. PO Santarsiero wrapped his arms around § 87(2)(b) and picked him up from the ground. Sgt. Catalano did not assist, and he did not see PO Santarsiero drop § 87(2)(b) at any point. § 87(2)(b) was not placed against a car, nor was he handcuffed at the scene.

Sgt. Catalano and PO Santarsiero were the only officers at the scene. § 87(2)(b) never answered Sgt. Catalano’s questions and did not provide any details about his prior interaction with officers. He did not explain anything that had happened inside the stationhouse, nor did he make any complaints in regards to an arrest. Neither Sgt. Catalano nor PO Santarsiero pushed § 87(2)(b) and neither officer spat on him. No officer stepped on any part of § 87(2)(b)’s body. Neither Sgt. Catalano nor PO Santarsiero called § 87(2)(b) homosexual or gay, and not officer said that § 87(2)(b) “sucked dicks” [see 07 Board Review].

§ 87(2)(a) PHL § 18(6)

[REDACTED]

§ 87(2)(a) PHL § 18(6)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

A HIPAA form was sent to § 87(2)(b) with a subpoena for § 87(2)(b)'s medical records for visits between § 87(2)(b), and § 87(2)(b). § 87(2)(b)

[REDACTED]

According to the National Institute on Drug Abuse, K2 or Spice is a type of synthetic marijuana that can cause effects similar to marijuana, such as elevated mood, relaxation, and altered perception. However, some users have reported psychotic effects like extreme anxiety, paranoia, agitation, confusion, and hallucinations [see 03 Board Review].

§ 87(2)(g)

[REDACTED]

[REDACTED]

it is therefore recommended that **allegations A and B** be closed as **unfounded**.

Allegation C) Discourtesy: An officer spat on § 87(2)(b)

Allegation D) Offensive Language: PO Denis Kolenovic made remarks to § 87(2)(b)

§ 87(2)(b) based on the perceived sexual orientation of § 87(2)(b)

Allegation E) Discourtesy: PO Denis Kolenovic acted rudely toward § 87(2)(b) § 87(2)(b)

§ 87(2)(b) alleged that an officer spat on him as he lay on the ground outside of the stationhouse. § 87(2)(b) did not see which officer did this. As mentioned above, § 87(2)(b) called for an ambulance, and officers, including PO Kolenovic, came outside a short time later. § 87(2)(b) was handcuffed and placed on the ground, at which point PO Kolenovic allegedly called § 87(2)(b) gay, homosexual, and said that § 87(2)(b) “sucked dicks.” According to § 87(2)(b) PO Kolenovic stepped on his buttocks as § 87(2)(b) lay on his stomach [see 04-05 Board Review].

As cited above, PO Kolenovic cited § 87(2)(b) s rowdy behavior as the reason for their interaction. PO Kolenovic testified that no officer spat on § 87(2)(b) PO Kolenovic denied calling § 87(2)(b) gay or homosexual, and he did not say that § 87(2)(b) “sucked dicks.” PO Kolenovic did not hear any officer make those statements, and he alleged that § 87(2)(b) was the one using homophobic slurs, such as “suck my dick, you faggot.” PO Kolenovic denied stepping on § 87(2)(b) s buttocks and did not see any officer do so [see 11 Board Review].

All of the other officers interviewed denied spitting on § 87(2)(b) or seeing any officer spit on him. PO Yu, Sgt. Catalano, and Sgt. Zeng all denied calling or hearing any officer call § 87(2)(b) gay or homosexual or say that he “sucked dicks.” All of the officers denied stepping on § 87(2)(b) s buttocks. Specifically, both PO Yu and Sgt. Catalano denied making physical contact with § 87(2)(b) [see 06-08, 11, 13 Board Review].

§ 87(2)(g)
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§ 87(2)(g). As such, it is recommended that **allegation C** be closed as **officer unidentified**.

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§ 87(2)(g) It is therefore recommended that **allegations D and E** be closed as **unsubstantiated**.

Pod: 8

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date